

Nirankar Singh v. U.P. Power Corporation

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 9 April 2024 · 2024:AHC-LKO:28686-DB · WRIT - C No. 3259 of 2024 · **Writ disposed; apply under para 5.6 within ten days**

HEADNOTE

A writ seeking replacement of an electricity meter was disposed of by directing the consumer to move an application under Paragraph 5.6 of the Electricity Supply Code before opposite party no. 4 within ten days. If moved, the application is to be dealt with in accordance with law within two weeks. The licensee stated that the consumer's application of 20 February 2024 had not been received.

FACTUAL SUMMARY

Nirankar Singh moved the Lucknow Bench for a mandamus directing the U.P. Power Corporation and its officers to replace the meter of his electricity connection, account No. 732100774462, meter No. 8808715. He placed reliance on an application dated 20 February 2024, annexed as Annexure-4. Counsel for the Corporation, on written instructions, told the Court that the application had not been received in the department.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

Meter replacement to be sought under paragraph 5.6

HOLDING

Where the consumer seeks replacement of the meter and the department denies receipt of the earlier application, the writ is disposed of by directing the consumer to move an appropriate application under Paragraph 5.6 of the Electricity Supply Code before opposite party no. 4 within ten days, to be dealt with in accordance with law within a further two weeks. ¶ 3-4

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

The Court did not itself direct replacement of the meter. It disposed of the writ by requiring the consumer to move a Paragraph 5.6 application before opposite party no. 4, to be dealt with in accordance with law. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER OF ACCOUNT NO. 732100774462 IS LIABLE TO BE CHANGED

Left to opposite party no. 4 on the Paragraph 5.6 application, to be dealt with in accordance with law. ¶ 4